PROOF OF CONCEPT AGREEMENT FOR POWER SUPPLY AND MAINTENAMCE SERVICES

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BETWEEN

IHS (NIGERIA) LIMITED
(IHS)

AND

CROSSBOUNDARY NIGERIA LIMITED
(CONTRACTOR)

THIS PROOF OF CONCEPT AGREEMENT FOR POWER SUPPLY AND MAINTENANCE SERVICES IS MADE THIS 9th DAY OF DECEMBER 2022 (THE "EFFECTIVE DATE").

BETWEEN

IHS (NIGERIA) LIMITED, a company registered under the laws of the Federal Republic of Nigeria and having its principal place of business at Plot 934, Idejo Street, Victoria Island, Lagos, Nigeria (hereinafter referred to as **"IHS"**, which expression shall where the context so admits include its successors-in-title, Affiliates, and assigns) of the first part;

AND

CROSSBOUNDARY NIGERIA LIMITED a company registered under the Laws of the Federal Republic of Nigeria and having its principal place of business at 5th Floor, Landmark Towers, Water Corporation Drive, Victoria Island, Lagos, Nigeria (hereinafter referred to as the **"Contractor"** which expression shall where the context so admits include its successors-in-title, Affiliates, and assigns) of the second part;

IHS and the **Contractor** are each hereinafter referred to as a **"Party"** and, together, as the **"Parties".**

WHEREAS:

a) IHS is a limited liability company duly licensed by the Nigerian Communication Commission to engage in the business of telecommunications infrastructure development within Nigeria.

b) The Contractor is engaged in the business of providing certain services, which include alternative power supply and site maintenance services to its customers.

c) IHS wishes to engage the Contractor to provide alternative power supply and site maintenance services on designated IHS telecommunications sites (the **"Sites"**) in accordance with the terms and conditions of this Agreement (hereinafter referred to as the **"Services"**).

d) The Contractor has represented to IHS that it has the requisite expertise and capacity to provide the Services and any other related services that may be agreed by the Parties from time to time in accordance with the terms and conditions of this Agreement.

e) The Parties have therefore agreed to enter this Agreement as a proof of concept in relation to the Services.

f) Relying on the Contractor's representations, IHS now desires to engage the Contractor to provide the Services in accordance with the terms and conditions of this Agreement which terms shall be legally binding on the Parties.

NOW THEREFORE in consideration of the mutual agreements and covenants herein contained and intending to be legally bound thereby, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATIONS

1.1. DEFINITIONS

In this Agreement, unless inconsistent with or otherwise indicated by the context, the following words and expressions shall have the meanings ascribed to them in this clause:

"Affiliates" of a Party, shall mean with respect to such Party, an entity that directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such Party; provided, however, that in the case of IHS, the term shall mean INT Towers Limited, IHS Towers NG Limited and any other Affiliate of IHS duly communicated in writing to the Contractor by IHS. For the purpose of this definition, **"Control"** (including the terms "controlled," "controlled by" and "under common control with") means the possession, directly or indirectly or as trustee or executor, of the power to direct or cause the direction of the management policies of a Party, whether through the ownership of stock, as trustee or executor, by contract, credit arrangement or otherwise.

"Agreed Cost" shall mean the CAPEX expended by the Contractor for the Energy Infrastructure, as set out in Schedule 1.

"Agreement" shall mean this proof of concept agreement for power supply and maintenance services, its schedules, appendices, and any amendments thereof made in accordance with the terms and conditions as contained herein.

"Anti-Corruption Laws" shall have the meaning ascribed thereto in **Clause 16.3.1** of this Agreement.

"Applicable Law" shall mean any statute, law, regulation, ordinance, rule, judgment, rule of common law, clearance, order, decree, bye-law, directive, guideline, policy, requirement or other governmental restrictions or any similar form of decision or determination by, or any interpretation or administrative order having the force of law of any of the foregoing by any government authority having jurisdiction over the matter in question in Nigeria.

"Approvals" shall mean any licence, exemption, permit, consent, approval, authorization, determination, certificate, or notice required to be obtained by the Contractor from any governmental body or institution in connection with the provide the Services, including any condition or requirement imposed under any of the foregoing.

"Change of Control" shall mean the sale of all or substantially all the assets of the Contractor, any merger, consolidation, or acquisition of the Contractor with, by or into another corporation, entity or person, or a change in the majority of the board of directors of the Contractor or any change in ownership of more than **fifty percent (50%)** of the voting capital stock or other ownership interest of the Contractor in one or more related transactions.

"Confidential Information" includes without limitation, any technical, commercial, scientific information, know-how, trade secrets, business ideas, processes, machinery, designs, drawings, technical specifications, and data in whatever form disclosed, that concern or relate to IHS's business, operations, styles of work or any other information that may be acquired by the Contractor in relation to this Agreement and including the existence and terms of this Agreement and any purchase orders.

"Consequential Loss" shall mean any loss or anticipated loss of profit, revenue, business interruption, loss of use of any equipment, loss of any contract or other business opportunities and any other indirect loss of a similar nature.

"Delivery Point" shall mean one or more energy connection point(s) where Energy Output is made available to IHS as marked in SCHEDULE 1.

"Disclosing Party" shall have the meaning ascribed thereto under **Clause 23.1** of this Agreement.

"Dispute" shall have the meaning ascribed thereto in **Clause 21.2** of this Agreement.

"Effective Date" shall have the meaning ascribed thereto in the preamble to this Agreement.

"Energy Infrastructure" shall mean a solar electric power generation system including equipment, solar panels, mounting substrates, support structure, protection, solar converter, rectifiers, controls, meters and metering equipment, switches, connections, conduit, wiring and connections, and all other elements as defined in Schedule 1 of this Agreement.

"Force Majeure Event" shall mean any event which is beyond a Party's reasonable control, including by way of indication (but not as an exhaustive list) the events specified below, but in all cases insofar as the relevant events reasonably prevent or delay the impacted Party from performing all or part of its obligations under this Agreement:

a. any revolution, riot, invasion or war (whether declared or otherwise), act of terrorism, uprising, sabotage or action by a public enemy;
b. any act of God, natural disaster, strike (excluding any strike by the Contractor's personnel or subcontractor), lock out, epidemics or pandemics; and
c. any acts by military, police, or civil authorities (whether national, local or foreign),
d. actions or interventions by governmental regulators outside of the Contractor's reasonable control to the extent that same is not insurmountable and not caused by their negligence or default.
e. any action from local community preventing access to a site, provided that the Contractor appropriately escalated such event to IHS within 24 hours of having such knowledge. The Parties further agree that this provision shall cease to be classified as a Force Majeure Event after the first year from the Effective Date hereof.

provided that in all cases, the Party whose performance is affected has taken all steps as may reasonably be expected to have been taken in order to prevent such act or event from occurring or impacting the performance of its obligations.

For the avoidance of doubt, the Parties agree that:

i. failure of a subcontractor to perform its obligations shall not be deemed to be a Force Majeure Event;
ii. power outages shall not be deemed to be a Force Majeure Event.

"Good Industry Practice" shall mean the exercise of that degree of skill, diligence, prudence, and foresight in compliance with the undertakings and obligations under this Agreement which would reasonably and ordinarily be expected of a skilled and experienced person engaged in providing the Services or any similar services.

"Governmental Official" shall have the meaning ascribed thereto in **Clause 16.3.2** of this Agreement.

"Governmental Authority" shall mean any international, supranational, national, federal, state or local governmental authority, including all regulatory, executive, legislative, judicial and administrative bodies or agencies thereof.

"IHS Authorized Personnel" shall mean IHS Director, Energy Program or a person nominated by him, the appointment of which the Contractor shall be duly informed of by the IHS Director, Energy Program.

"IHS Locations" shall mean location detailed in **Schedule 2** of this Agreement and any other location which IHS may communicate to the Contractor.

"IHS Supplier Code of Conduct" shall mean the code of conduct and business principles, copy of which is available at: https://www.ihstowers.com/group/our-values/ or as may be amended or superseded.

"Intellectual Property Rights" shall mean any *(a)* rights associated with works of authorship anywhere in the world, including exclusive exploitation rights, copyrights, moral rights and mask works, *(b)* trademark and trade name rights and similar rights, *(c)* trade secret rights, *(d)* patents, designs, algorithms and other industrial property rights, *(e)* other intellectual, industrial property and proprietary rights of every kind and nature anywhere in the world, whether arising by operation of law, by contract or license, or otherwise, and *(f)* all registrations, applications, renewals, extensions, combinations, divisions or reissues of the foregoing.

"Liabilities" shall have the meaning ascribed thereto under **Clause 25.1** of this Agreement.

"MPPT" means Maximum Power Point Tracking.

"Performance Monitoring Period" shall mean a period of **ninety (90) days** from the date of integration of the power system to the Site as confirmed by IHS, within which IHS shall monitor and review the Services to confirm whether the Services runs seamlessly in accordance with the success criteria and other provisions of the Agreement. This Performance Monitoring Period may be extended for a further period of not more than ninety (90) days at the sole discretion of IHS.

"Performance Standards" shall include the International Finance Corporation's Performance Standards on Social & Environmental Sustainability, which is available at: http://www.ifc.org/wps/wcm/connect/topics_ext_content/ifc_external_corporate_site/ifc+sustainability/our+approach/risk+management/performance+standards/environmental+and+social+performance+standards+and+guidance+notes or as may be amended or superseded from time to time.

"Recipient" shall have the meaning ascribed thereto under **Clause 23.1** of this Agreement.

"Services" shall have the meaning ascribed thereto in the preamble to this Agreement.

"SLA" shall mean service level agreement expected of the Contractor in respect of the Services during the term of this Agreement.

"Tax" shall mean all applicable taxes, duties, levies, and charges prescribed by the relevant Governmental Authority and payable in respect of the Services under the Applicable Law as of the date of this Agreement or as may be amended from time to time.

"Termination" shall mean termination of this Agreement pursuant to a Termination Notice or otherwise in accordance with the provisions of this Agreement but shall not, unless the context otherwise requires, include expiry of this Agreement due to effluxion of time in the normal course.

"Termination Notice" shall mean a notice of Termination of this Agreement, served on a Party to this Agreement, in accordance with the applicable provisions of this Agreement.

1.2 **INTERPRETATIONS**

1.2.1. Words importing the singular shall include the plural and vice versa, and words denoting natural persons shall include partnerships, firms, companies, corporations, unincorporated bodies, joint ventures, trusts, associations, organizations or other entities (in each case, whether or not having separate legal personality).

1.2.2 The headings are for convenience of reference only and shall not be used in, and shall not affect the meaning, construction, interpretation or scope of this Agreement or the provision it relates to.

1.2.3 The words "include" and "including" are to be construed without limitations.

1.2.4 Any reference to day, month or year shall mean a reference to a calendar day, 30 days or 365 days respectively, unless otherwise specified.

1.2.5 The schedules and appendices relating to this Agreement form an integral part of this Agreement as though they were expressly set out in the body of this Agreement. In case of any discrepancy between the schedules and appendices and the body of the Agreement, the latter shall prevail.

1.2.6 Any reference at any time to any agreement, deed, instrument, license or document of any description shall be construed as reference to that agreement, deed, instrument, license or other document as amended, varied, supplemented, modified or suspended at the time of such reference.

1.2.7 References to recitals, clauses, sub-clauses or schedules in this Agreement shall, except where the context otherwise requires, be deemed to be references to recitals, clauses, sub-clauses and schedule of or to this Agreement.

1.2.8 The expression "this Clause" shall, unless followed by reference to a specific provision, be deemed to refer to the whole clause and not merely the subclause, paragraph or other provision, within which the expression falls.

1.2.9 The expression "in writing" includes any communication made by letter or email to the recipient's email address.

1.2.10 Unless otherwise defined, words or terms used in this Agreement shall have their literal English meanings. Where any inconsistency between or among different language versions of the counterparts exists, the English language version shall prevail.

1.2.11 Any agreement, consent, approval, authorization, notice, communication, information, or report required under or pursuant to this Agreement from or by any Party shall be valid and effectual only if it is in writing under the hands of duly authorized representatives of such Party on its behalf and not otherwise.

1.2.12 Any reference to any period commencing "from" a specified day or date and "till" or "until" a specified day or date shall include both such days and dates.

1.2.13 Any reference to a statute, statutory provision or statutory instrument shall include any re-enactment or amendment thereof for the time being in force.

2. ENGAGEMENT

Relying on the Contractor's representations, IHS hereby engages the Contractor and the Contractor hereby agrees to be engaged by IHS to provide the Services in accordance with the terms and conditions of this Agreement.

3. COMMENCEMENT AND DURATION

3.1 This Agreement shall take effect from the Effective Date and shall subsist for a period of **one (1) year** subject to the termination provisions of this Agreement.

3.2 Notwithstanding the provision in **Clause 3.1 above**, the Services shall be deemed completed at the end of the Performance Monitoring Period.

4. SCOPE OF WORK/ SERVICES

4.1 The scope of work to be performed under this Agreement shall include obtaining or procuring all relevant Approvals necessary for executing all contractual obligations under this Agreement.

4.2 The Contractor shall provide to IHS the Services as specified in **Schedule 1** in a skillful, professional, efficient, and competent manner.

4.3 The specification for the Services must conform to the Scope of Works/Services in **Schedule 1** of this Agreement.

4.4 IHS shall conduct a performance test during the Performance Monitoring Period in order for IHS to monitor and determine the performance, efficiency and sustainability of the Services and to ensure that they align with the success criteria as provided in this Agreement.

4.5 In the event that the Services do not align with the provisions of this Agreement or where the proof of concept fails to align with the success criteria within the Performance Monitoring Period, IHS shall be entitled to cancel the Services at no cost to IHS. Where IHS decides to cancel the Services, it shall notify the Contractor, who shall discontinue the Services within **twenty-four (24) hours** from receipt of the notice.

4.6 The Parties agree to commit resources during the period of the POC to commence such good faith negotiations on the terms of the substantive agreement.

4.7 Where the POC is successful, IHS may at its discretion discuss commercial terms with the Contractor with respect to a substantive agreement relating to at least one thousand (1,000) sites.

4.8 If the POC is successful, and the Parties agree on a substantive agreement, the POC sites will be included in the substantive agreement.

4.9 If the POC is successful but Parties fail to agree on a substantive agreement, IHS will pay the Agreed Cost of the Energy Infrastructure.

4.10 If the POC is not successful, the Contractor shall decommission and remove the Energy Infrastructure from the Site(s) at the Contractor's sole cost.

5 TAXES, DUTIES AND LEVIES

5.1 To the extent that IHS relies on the evidence of tax compliance presented by the Contractor as requirement for its registration as its Contractor, IHS will not be held liable for any tax claim as a result of the non-compliance by the Contractor with tax registration, payment and filing requirements in relation to the Services to be rendered under this Agreement.

5.2 The Contractor shall be responsible for and shall bear its income taxes and that of its personnel engaged hereunder, and other taxes assessed or levied by the authorities against the Contractor for or on account of any amount paid hereunder. Under no circumstance shall IHS be held liable for the non-payment of taxes levied against the Contractor by the appropriate authorities.

6 REPRESENTATIONS AND WARRANTIES

The Contractor represents, warrants, and undertakes that:

6.1 it is a duly incorporated entity and validly existing under Applicable Laws.

6.2 at the time of entering this Agreement, it has currently in effect, and undertakes that it will at all times within the term of this Agreement have and / or continue to maintain, all necessary Approvals and technical know-how (including where its procedures so require, the consent of its parent company) required to provide the Services.

6.3 it has full capacity to enter into this Agreement and that this Agreement is executed by duly authorized representatives of the Contractor.

6.4 in entering this Agreement, it has not committed any fraud.

6.5 as at the Effective Date, all the information provided by it are true, comprehensive, accurate and not misleading.

6.6 it is not subject to any contractual obligation, compliance with which is likely to have a material adverse effect on its ability to perform its obligations under this Agreement.

6.7 it has complied with and will within the subsistence of this Agreement, comply with all Applicable Laws.

6.8 it shall not do anything which in the reasonable opinion of IHS is prejudicial to the status, image, reputation, or name of IHS or its customers.

6.9 it has performed and will continue to perform all reasonable and necessary due diligence for the purpose of providing the Services, as well as due diligence on all its subcontractors, agents, and any of its representatives who shall be engaged to provide the Services or provide any related services.

6.10 it shall at all times comply with IHS Supplier Code of Conduct and maintain high standards of ethics in the provision of the Services; the Contractor (for itself and on behalf of their privies, agents, consultants and subcontractors) warrants that it has not given and will not give any commissions, payments, gifts of substantial value, kickbacks, lavish or extensive entertainment or other items of value to any employees, members of an employee's family, or any agent of IHS or any Governmental Authorities, neither has it received nor will it or any of its employees receive the same from IHS in connection with matters pertaining to this Agreement and further acknowledges that the giving or receiving of any such payments, gifts, kickbacks, lavish or extensive entertainment or other things of value is strictly in violation of the policy of IHS and may result in the termination of this Agreement and all future business.

6.11 it shall not (neither shall any of its directors, employees, or agents) engage or assist and/or facilitate any criminal activity, nor shall it (nor any of its directors, employees, or agents) assist, aid, hide or divert the funds from any criminal activity whatsoever.

6.12 it shall not engage or assist and / or facilitate any terrorist activity or give any aid to any terrorist group or person whosoever and whatsoever.

6.13 it shall engage adequate, experienced, and qualified personnel or workmen with requisite training and skills to provide the Services and shall not engage any under-aged or prohibited persons for the Services.

6.14 it has in place and undertakes to maintain sufficient internal structures and processes to ensure such compliance and to track, prevent and detect such violations.

6.15 it shall at the request of IHS, promptly replace any of the Contractor's subcontractors when IHS believes that the relevant subcontractor is or has been negligent, ineffective, or caused the Contractor to be in breach of this Agreement.

6.16 the Contractor represents that all employees of the Contractor performing the Services hold the requisite and valid licenses or certifications, if any, to perform the Services. Any revocation, withdrawal or non-renewal of the requisite license, certification, approval, or insurance shall be a ground for termination of this Agreement.

6.17 the Contractor warrants that it shall at all relevant times, employ Good Industry Practice, comply with the Performance Standards and all Applicable Laws.

6.18 the Contractor hereby represents, warrants, and agrees that it has reviewed the IHS Supplier Code of Conduct, and shall at all times abide by the terms thereof.

IHS represents, warrants, and undertakes that:

6.19 it is a duly incorporated entity and validly existing under the Applicable Laws.

6.20 at the time of entering this Agreement, it has currently in effect, and undertakes that it will at all times have and/or continue to maintain, all necessary IHS Approvals.

6.21 it has full capacity to enter into this Agreement and that this Agreement is executed by duly authorized representatives of IHS.

6.22 in entering and during the pendency of this Agreement, it has not and shall not committed any fraud.

6.23 as at the Effective Date, all the information provided by it are true, comprehensive, accurate and not misleading.

6.24 it is not subject to any contractual obligation, compliance with which is likely to have a material adverse effect on its ability to perform its obligations under this Agreement.

6.25 it has complied with and will within the subsistence of this Agreement, comply with all Applicable Laws.

6.26 it shall not do anything which in the reasonable opinion of Contractor is prejudicial to the status, image, reputation, or name of Contractor.

6.27 it shall not (neither shall any of its directors, employees or agents) engage or assist and / or facilitate any criminal activity, nor shall it (nor any of its directors, employees or agents) assist, aid, hide or divert the funds from any criminal activity whatsoever.

6.28 That it shall not engage or assist and / or facilitate any terrorist activity or give any aid to any terrorist group or person whosoever and whatsoever.

7 OBLIGATIONS OF THE CONTRACTOR

7.1 General Responsibilities and Compliance with Applicable Laws

The Contractor shall, at its cost, obtain all the relevant Approvals that may be required in relation to the Services. The Contractor shall in addition, perform the following obligations:

7.1.1 In the event of default on the part of the Contractor to obtain all relevant Approvals from any relevant Governmental Authority, the Contractor shall indemnify IHS against all actual losses, liabilities, costs, expenses and/or damages directly arising thereof.

7.1.2 The Contractor shall also require compliance with Applicable Laws in any agreement with subcontractors that may be permitted under this Agreement.

7.1.3 In providing the Services, the Contractor shall at all times comply with all Applicable Laws including but not limited to environmental, health and safety laws, and abide by Good Industry Practice and the Performance Standards.

7.1.4 The Contractor shall regularly perform and implement quality assurance surveillance and plans to guarantee international standards essential to ensure the integrity of the Services.

7.1.5 The Contractor shall take reasonable care not to misplace or lose any data or information supplied by IHS. However, where the Contractor becomes aware of any material breach of this obligation, it shall immediately notify IHS, giving full details of the circumstances. Failure to give this notice shall be a ground for termination.

7.1.6. The Contractor acknowledges that the provision of the Services shall be in strict compliance with applicable environmental, health and safety standards. The Contractor shall provide all applicable documents as may be required by Applicable Laws in respect of the Services.

7.1.7 The Contractor shall not provide any incomplete or distorted data to IHS, neither shall it infringe or distort the Intellectual Property Rights of IHS or any third party in any way.

7.1.8 The Contractor shall immediately notify IHS in writing if it receives any notice, letter, citation, order, warning, complaint, claim or demand in relation to the Services.

7.1.9 The Contractor hereby represents, warrants, and agrees that it has reviewed the IHS Supplier Code of Conduct, and shall at all times abide by the terms thereof.

7.1.10 The Contractor shall be responsible for any defect relating to the Services.

7.2 **Timing**

7.2.1 The Contractor acknowledges that time is of essence in providing the Services and accordingly warrants and undertakes to strictly adhere to all delivery timelines as agreed under this Agreement.

7.2.2 The Contractor shall notify IHS (through the IHS Authorized Personnel, as well as IHS contact person notified to it pursuant to **Clause 27**) in writing whenever Services are likely or expected to be delayed or disrupted for whatever reason.

7.3 **Performance Monitoring**

The Contractor shall permit IHS, its auditors and any Governmental Authority to monitor the Services, pursuant to the provisions of this Agreement. Such monitoring may consist of internal evaluation procedures, re-examination of procedures, or any other reasonable procedures relating to the Services.

7.4 The Contractor shall submit to IHS as required and within the timeline stipulated by IHS, accurate and unambiguous report or any relevant information as may be required by IHS with regards to the performance of the Services. The Contractor shall therefore be responsible and liable for any false, negligent, inaccurate, or misrepresented information or direction given to IHS in relation to the provision of the Services.

7.5 The Contractor shall provide the necessary clarifications and follow-up actions with regards to the provision of the Services.

7.6 The Contractor shall attend to any queries, requests for clarification or ambiguities that may be raised by IHS, any external auditor or Governmental Authority in relation to any audit report provided by the Contractor under this Agreement.

7.7 The Contractor shall provide IHS with at least **ninety (90) days** prior written notice of any potential Change of Control of the Contractor. The notification shall state all relevant information relating to the Change of Control, including but not limited to the details of the new stakeholders.

8 OBLIGATIONS OF IHS

8.1 To provide the Contractor with all relevant information in relation to Services.

8.2 To make payments to the Contractor as set out in Schedule 3 (Pricing and Payment terms) of this Agreement.

8.3 Compliance with the terms and conditions on the use of the Services under this Agreement.

8.4 IHS shall at all times comply with all Applicable Laws.

8.5 IHS shall be responsible for any damage it, its personnel, or any of its sub-contractors cause to the Contractor's equipment on the Site(s) as a result of proven negligence on the part of IHS, its personnel or any of its sub-contractors.

8.6 IHS shall make the Sites available for the Contractor install the Energy Infrastructure, as applicable, for the duration of POC.

8.7 IHS shall at all times grant access to the Contractor's designated representatives for the performance of the Services.

8.8 IHS shall immediately notify the Contractor in writing if it receives any notice, letter, citation, order, warning, complaint, claim or demand in relation to the Services performed by Contractor.

8.9 IHS shall provide the equipment and services as detailed under **Schedule 1** of this Agreement.

9 BENEFICIARIES

9.1 This Agreement shall subsist to the benefit of both Parties and their successors-in-title, Affiliates, and assigns.

9.2 Nothing contained in this Agreement shall give or allow any claim or right of action whatsoever by any third person. It is the express intention of IHS and the Contractor that any such person or entity other than as referred to in **Clause 9.1** above receiving the Services or benefits under this Agreement shall be deemed an incidental beneficiary only and as such, no person who is not a party to this Agreement (nor contemplated in **Clause 9.1**) shall have any right to enforce any term of this Agreement.

10 APPOINTMENT AND NON-EXCLUSIVITY

This Agreement is a non-exclusive Agreement and IHS retains the exclusive and/or unlimited right to engage any other contractor with respect to the Services at any time without any liability or obligation to the Contractor. IHS reserves the right to suspend the Services for any reason whatsoever, including in the event where IHS has any material reason to suspect an infringement of any provisions of this Agreement.

11 INDEPENDENT CONTRACTOR STATUS

The Contractor shall provide the Services as an independent contractor and not as an employee or agent of IHS. Neither the Contractor nor any of its agents or employees shall be deemed an agent or employees of IHS. The Contractor shall have no authorization, express or implied, to bind IHS to any agreement, liability or understanding save as stated under this Agreement. The Contractor shall be solely responsible for the acts of itself, its employees, personnel, representatives, agents, and subcontractors.

12 RECORD MAINTENANCE AND REVIEW

12.1 Notwithstanding any provision in this Agreement, all payments made by IHS to the Contractor under this Agreement shall be subject to audit by IHS from time to time. The Contractor must preserve its records for such a period as the internal revenue services or any other relevant record keeping body may require. If different periods are prescribed, the longest of such periods shall apply, but in any event, the Contractor shall retain its records for not less than **seven (7) years** from the date of payment and IHS' representatives shall upon reasonable request, be permitted free and unrestricted access to all such relevant records.

12.2 The Contractor shall at any time, upon the request of IHS as applicable, whether during or upon termination of this Agreement (which may be up to **three (3) months** after the relevant Termination Date), and at the Contractor's own expense, make available such records which include books, payment receipts, documents, accounting procedures and practices and other data, regardless of type and regardless of whether such items are in written form, in the form of computer data, or any other form, and other supporting evidence to satisfy contract negotiation, administration and audit requirements of IHS. Such records shall be made available to IHS during normal business hours at the Contractor's office, its local representative's office or any other agreed location as may be convenient for IHS, subject to forty-eight (48) hours written notice and to the execution of a non-disclosure agreement by IHS' representative to protect the Contractor's Confidential Information.

12.3 If the information described above are retained on a computer and/or in any form whatsoever, then the Contractor shall retain the computer data or any content in whatever form on a reliable medium for a period of **seven (7) years** from the expiry/termination of the Agreement. The Contractor's computer or physical data retention and transfer procedures shall maintain the integrity, reliability and security of the original computer or physical data. The Contractor shall also retain an audit trail describing the data transfer for a period of **seven (7) years** after the expiry / termination of this Agreement, within which the Contractor shall not destroy, discard, delete, or write over such computer or physical data.

13. INSURANCE

13.1 The Contractor shall maintain as applicable, adequate, and proper insurance cover with a reputable insurer throughout the term of the Performance Monitoring Period as follows:

13.1.1 **Professional Indemnity Insurance:** The Contractor shall maintain at its expense and during its performance of the Services hereunder, professional indemnity policy to cover for any negligence, neglect, omission, or error committed in the conduct of the Contractor's business in a professional capacity by the insured or by any person now or who may hereafter be in the employment of the insured.

13.1.2 any other insurance that may be required by law.

13.2 **Evidence of Insurance:** The Contractor shall provide IHS with certificates of insurance or other documentary evidence, satisfactory to IHS, of the insurance and endorsements required under this Agreement as well as a copy of the policy and proof of updated premium payment.

13.3 **Premium, Deductibles or Self-Insured Retentions:** The Contractor is solely responsible for payment of all premiums, deductibles or self-insured retentions that are applicable to the Contractor's insurance, including coverage of claims made against indemnity clauses under this Agreement.

13.4 The Contractor represents, warrants, and undertakes that nothing has or will be done or be omitted to be done which may result in any of the insurance policies being or becoming void, voidable, or unenforceable.

14. EMPLOYEES AND LABOUR

14.1 The Contractor shall employ adequate number of qualified, skilled, and experienced personnel to perform the Services under this Agreement. IHS may require the Contractor to remove any person employed from performing the Services, who in the opinion of IHS:

14.1.1 engages in any misconduct;

14.1.2 is incompetent or negligent in the performance of his/her duties;

14.1.3 fails to conform with any provisions of this Agreement; and/or

14.1.4 engages in any conduct which is in breach of IHS Supplier Code of Conduct and prejudicial to safety, security, health, or the protection of the environment.

14.2 The Contractor shall comply with all statutory requirements of employment and labour under relevant Applicable Laws, with respect to the Contractor's expatriate and local employees or workmen, contractors, and agents. Such requirements shall include, without limitation, obligations relating to minimum wage, hygienic working conditions, leave, medical and life insurance, provident fund and pension fund, personal protection equipment (as required), tools of trade. The Contractor shall also submit proof of compliance with these requirements upon demand by IHS.

15 TRADE LAWS, ANTI-TERRORISM AND ANTI-MONEY LAUNDERING

15.1 The Contractor hereby represents, warrants, and undertakes to IHS that neither the Contractor nor any of its directors, officers, employees, Affiliates or any third party retained by and/or representing it, (a) is the government of, resident in, located in, organized under the laws of, or subject to the jurisdiction of, any country or territory that is, or whose government is, the target of comprehensive economic or trade sanctions or restrictive measures under Applicable Laws, presently including the Crimea, Donetsk and Luhansk regions of Ukraine, Cuba, Iran, North Korea, Syria, and the Government of Venezuela; (b) is designated on any sanctions list promulgated, administered, or enforced

under Applicable Laws, including but not limited to, the U.S. Treasury Department's Specially Designated Nationals and Blocked Persons List; (c) is owned or controlled directly or indirectly by any party described any clauses (a) or (b); (d) is subject to a Denial Order by the U.S. Department of Commerce, Bureau of Industry and Security; or (e) is subject to any other restrictions that would preclude IHS from dealing with the Contractor.

15.2 The Contractor hereby confirms that:

15.2.1 It shall not (neither shall any of its directors, employees, or agents) directly or indirectly engage in, promote, or assist and/or facilitate any form of terrorist group or person who engages in or promotes or supports, any form of terrorist activity whatsoever.

15.2.2 It shall ensure that it complies with anti-money laundering and anti-terrorism laws, laws and regulations on sanctions or embargoes, restricted party lists trade controls on the import, export, re-export, transfer or otherwise trade of goods, services, software, or technology, including those of any jurisdiction in which IHS receives the Services, or where the Contractor or its Affiliate(s) operates, including, but not limited to, the European Union, the United Kingdom and the United States of America and other Applicable Laws. The Contractor further confirms that it has in place and undertakes to maintain sufficient internal structures and processes to ensure such compliance and to track, prevent and detect the violations of these laws.

15.2.3 It shall, if any of the Services provided hereunder requires a license, permit, or other authorization from any sanctions or export controls governmental or regulatory authority, including but not limited to, the U.S. Treasury Department and the U.S. Commerce Department (collectively, **"Trade Authority"**), prior to the direct or indirect provision of the Services to IHS: (a) apply for and secure all necessary licenses, permits, or other authorizations from the relevant Trade Authority to allow the export, reexport, transfer, disclosure, or other release or provision of the Services to or for the benefit of IHS; (b) provide written notice to IHS of any end-user, end-use, or other applicable conditions issued by a Trade Authority as part of any necessary license, permit or other authorization received from a Trade Authority; and (c) provide written notice to IHS to identify all items subject to a license, permit, or other authorization.

15.2.4 It shall ensure that none of its directors or officers has been the subject of an investigation, settlement or conviction for applicable anti-money laundering and anti-terrorism, sanctions and export controls laws and regulations.

15.2.5 It shall immediately upon discovery or reasonable suspicion, send to IHS, a written notification of an incident or suspicion of the involvement of the Contractor, its directors, officers, employees, Affiliates, or any third party retained by it/representing it in a violation of applicable anti-money laundering and anti-terrorism, sanctions and export control laws and regulations in connection with the Services which the Contractor provides to IHS.

16 ANTI-CORRUPTION & ANTI-BRIBERY

16.1 Each Party hereby represents, warrants and undertakes that, at the date of this Agreement, neither it nor any of its directors, officers, employees, Affiliates or any third party retained by and/or representing it, has offered, promised, given, authorized, solicited or accepted any undue pecuniary or other advantage of any kind (or implied

that they will or might do any such thing at any time in the future) in any way connected with this Agreement, and that it has taken reasonable measures to prevent subcontractors, agents or any other third parties subject to its control or determining influence from doing so.

16.2 Each Party shall comply with all applicable anti-bribery and anti-corruption laws in any relevant jurisdiction (including those applicable in its jurisdictions of operation, the territory of the supply of Services and any related goods and products, the Foreign Corrupt Practices Act of the United States of America, and the Bribery Act 2010 of the United Kingdom) and all applicable anti-bribery and anti-corruption regulations and codes of practice.

16.3 The Contractor further represents, warrants, and undertakes to IHS as follows:

16.3.1 That the Contractor, its directors, officers, employees and Affiliates, and anyone retained by and/or representing it, in each case have and will strictly adhere to and comply with all Applicable Laws, rules and regulations against bribery and corruption (including but not limited to local, regional and international anti-bribery and anti-corruption laws, such as the U.S. Foreign Corrupt Practices Act, the U.K Bribery Act and any applicable legislation in any relevant country where the Services are to be provided, or where the Contractor or its Affiliate operates) (collectively, "**Anti-Corruption Laws"**), and that neither it nor any of its directors, officers, employees, Affiliates, agents, representatives or subcontractors have engaged in any activity or conduct that has resulted or will result in a violation of any Anti-Corruption Law.

16.3.2 That the Contractor is not a government entity or political party in any country in which it or its Affiliates operate and that no officer, director, stockholder, employee, or agent, representative or subcontractor of the Contractor , is (i) an officer or employee of a government or any department, agency or instrumentality thereof (which includes a government-owned or government-controlled state enterprise) or of a public international organization, such as the World Bank; (ii) a person acting in an official capacity for or on behalf of a government or government entity or of a public international organization, any political party or party official or any candidate for political office; or (iii) a family member of any of the foregoing (**"Government Official"**).

16.3.3 That in connection with the terms of this Agreement, none of the Contractor or any of its officers, directors, stockholders, employees or agents, representatives or subcontractors have offered, paid, promised to pay, or authorized the payment of any money or any other thing of value to: (a) any Government Official or any one acting though a Government Official as that term is defined above; or (b) any other person while knowing that all or a portion of such money or anything else of value would be offered or given directly or indirectly to any official, political party, or to any candidate for political office for any of the prohibited purposes listed below.

16.3.4 For the purposes of **Clause 16.3.3** above, the prohibited purposes are

a. to influence an act or decision of such official, political party, party official or candidate in his official capacity;

b. to induce such official, political party, party official or candidate to do or omit to do any act in violation of the lawful duty of such party, official or candidate; or

c. to induce such official, foreign political party, party official or candidate to use his or its influence with a Government Official.

16.4 That in connection with any future engagement or transaction with or relating to IHS, none of the Contractor or any of its officers, directors, stockholders, employees, agents representatives or subcontractors will offer, pay, promise to pay, or authorize the payment of any money or any other thing of value to (a) any Government Official as that term is defined above, or (b) any other person while knowing that all or a portion of such money or anything else of value would be offered or given directly or indirectly to any official, political party, or to any candidate for political office for any of the prohibited purposes listed above.

16.5 The Contractor hereby confirms that:

16.5.1 It shall ensure that none of its directors or officers have been the subject of an investigation, settlement, or conviction for violations of applicable bribery or corruption laws.

16.5.2 It shall immediately upon discovery or reasonable suspicion send IHS a written notification of an incident or suspicion of the involvement of the Contractor, its directors, officers, employees, Affiliates, or any third party representing it in a violation of applicable bribery or corruption laws.

17 CONFLICT OF INTEREST

17.1 During the term of this Agreement, the Contractor shall not engage in any business or personal activities or practices or maintain any relationships which conflict in any way with the Contractor's performance of its obligations under this Agreement.

17.2 Neither the Contractor nor any of its employees shall, at any time during the term of this Agreement, do anything or have any financial interest or other relationships which would amount to conflict of interest or influence or otherwise jeopardize the professional judgment of the Contractor in connection with the Services provided under this Agreement.

17.3 The Contractor agrees to refrain from practices, activities or relationships which could reasonably be considered to be in conflict with the Contractor's performance of its obligations to IHS under the terms of this Agreement.

17.4 In the event that the Contractor is uncertain whether the appearance of a conflict of interest may reasonably exist, the Contractor shall submit to IHS a full disclosure statement setting forth the relevant details for IHS's consideration and direction. Failure to promptly submit a disclosure statement or to follow IHS's direction with regard to the apparent conflict shall be a ground for the termination of this Agreement.

18 ASSIGNMENT/DELEGATION/SUBCONTRACTING

18.1 The duties and obligations of the Contractor arising hereunder cannot be assigned, delegated, or subcontracted except with the express prior written consent of IHS.

However, IHS shall have the right to assign or delegate its duties and obligations and duly notify the Contractor.

18.2 The subcontractors of the Contractor permitted by IHS shall be subject to the requirements of this Agreement, and the Contractor shall be responsible for all subcontracting arrangements and provision of the Services and any related services agreed by the Parties under this Agreement.

18.3 The Contractor shall be responsible for the acts, omissions and performance of any subcontractor as may be approved by IHS.

18.4 The Contractor represents, warrants, and agrees that any subcontract it enters into in relation to or in respect of performance of this Agreement shall include a provision that the subcontractor shall abide by the terms and conditions hereof, as well as all other Applicable Laws that have been or may hereafter be established. Furthermore, the Contractor represents, warrants, and agrees that all subcontracts shall include a provision that the subcontractors shall indemnify and hold IHS harmless from all Liabilities, damages, costs, liability, or losses resulting from the provision of the Services under this Agreement.

19. TERMINATION

Notwithstanding the dispute resolution provisions of this Agreement or any other provisions of this Agreement, either Party shall be entitled to terminate this Agreement on the following grounds:

19.1 **Termination for Cause**

19.1.1 A Party may terminate the Agreement immediately on written notice to the other Party, if the other Party commits a material breach of its obligations under this Agreement and, if the breach is capable of remedy fails to remedy the breach within **seven (7) days** of being given notice to do so, or such greater period as agreed between the Parties where the remedy is not reasonably possible or practical within such **seven (7) day period**;

19.1.2 A Party may terminate the Agreement immediately on written notice to the other Party in the event that the other Party becomes insolvent or unable to pay its debts when they become due or if any corporate action, legal proceedings or other procedure or step is taken or notice is given in relation to a moratorium of any indebtedness, a suspension of payments, winding-up, dissolution, administration or reorganisation (by way of voluntary arrangement, scheme of arrangement or otherwise) of, or the appointment of an administrator in respect of the Contractor or if the other Party enters into a composition, assignment or arrangement with any of its creditors or upon the appointment of a provisional liquidator, a liquidator, receiver, receiver or manager, administrative receiver, administrator, compulsory or interim manager or other similar officer in respect of the other Party or any of its assets or any analogous procedure or step is taken in any jurisdiction with respect to the Contractor;

19.1.3 IHS shall be entitled to terminate this Agreement on the following grounds:

19.1.3.1 immediately on written notice to the Contractor where the Service arrangement becomes subject to a direction from any Governmental

Authority stating that it is unlawful for the operation of the provision of the Services.

19.1.3.2 immediately on written notice if the Contractor sells or disposes of all or a substantial part of its business or assets;

19.1.3.3 at any time, where at the sole discretion of IHS, it deems that the Change of Control or potential Change of Control of the Contractor will be inimical to the business or interest of IHS;

19.1.3.4 immediately on written notice if the Contractor commits fraud in relation to the arrangements contemplated by this Agreement;

19.1.3.5 immediately on written notice if the Contractor does or omits to do anything which, has a material adverse effect on the reputation of IHS or its customers;

19.1.3.6 immediately on written notice if the Contractor fails to meet the agreed scope of work and deliverables as detailed in **Schedule 1 (Scope of Works/Services)** to this Agreement;

19.1.3.7 without notice, in case of the Contractor's negligence and/or wilful misconduct; and

19.1.3.8 immediately on written notice if the Contractor breaches, or IHS reasonably suspects the Contractor may have breached the IHS Supplier Code of Conduct.

19.2 **Termination for Convenience**

IHS shall have the right to terminate this Agreement for convenience or without cause by giving the Contractor at least **ten (10) days'** prior written notice. If notice is so given, this Agreement shall terminate upon the expiration of the specified period. Such termination shall include settlement by IHS of (i) all outstanding payments for Services provided, and (ii) the Agreed Cost of the Energy Infrastructure.

19.3 **Immediate Termination**

This Agreement shall, upon giving **seven (7) days'** notice, be subject to immediate termination by IHS in the event that the Services will cause material, irreparable and immediate harm to the interest of IHS. In addition, IHS may immediately terminate this Agreement in this regard upon verifying that the Contractor has engaged in or is about to engage in fraudulent acts.

19.4 **Consequences of Termination / Survival**

Upon any Termination of this Agreement, the liability of the Parties for further provision of the Services shall thereupon cease, but the Parties shall not be released from the duty to perform any obligations that accrued prior to Termination, and Termination shall not affect a Party's accrued rights and obligations prior to Termination.

20 FORCE MAJEURE

20.1 **Notice of Force Majeure Event**

As soon as practicable and in any case, within **twenty-four (24) hours** from the date of the occurrence of a Force Majeure event, or the date of knowledge thereof, the Contractor shall notify IHS of the same in writing, setting out *inter alia*, the following in reasonable detail:

20.1.1 the nature and extent of the Force Majeure Event;

20.1.2 the estimated Force Majeure period;

20.1.3 the nature of and the extent to which performance of any of its obligations under this Agreement are affected by the Force Majeure Events;

20.1.4 the measures which the Contractor has taken or proposes to take to alleviate / mitigate the impact of the Force Majeure Event and to resume the performance of its obligations thereby affected;

20.1.5 any other relevant information concerning the Force Majeure event, and / or the rights and obligations of the Parties under this Agreement.

20.2 **Performance of Obligations**

If the Contractor is rendered wholly or partially unable to perform any of its obligations under this Agreement due to a Force Majeure event, it shall be excused from the performance of such obligations to the extent that it is unable to perform same on account of such Force Majeure Event, provided that:

20.2.1 Due notice of the Force Majeure Event has been given to IHS as required under this Agreement;

20.2.2 The excuse from performance shall be of no greater scope and of no longer duration than is necessitated by the Force Majeure Event;

20.2.3 The Contractor has taken all reasonable efforts to mitigate or limit any damage that may be caused or is likely to be caused in relation to the Services as a result of the Force Majeure Event and to resume the provision of the Services in accordance with Good Industry Practice and its obligations under this Agreement;

20.2.4 When the Contractor is able to resume the performance of its obligations under this Agreement, it shall give to IHS written notice to that effect and shall promptly resume its Services; and

20.2.5 The Contractor shall continue to perform its obligations which are not affected by the Force Majeure Event and which are capable of being performed in accordance with the provisions of this Agreement.

20.2.6 The Parties hereby agree that where a Force Majeure Event persists for a period of **thirty (30) days** or more, IHS shall have the right to terminate the Agreement immediately, with or without notice.

21 DISPUTE RESOLUTION

21.1 If during the term of this Agreement, either Party has cause to believe that the other Party is not fulfilling its obligation under the terms of this Agreement, then the Party who is dissatisfied shall give written notice to the other Party of its objections and the reason thereof. Both Parties shall use their best efforts to reach a mutual agreement to overcome the objections.

21.2 Any dispute arising out of or in connection with this Agreement (including a dispute relating to the existence, validity or termination of this Agreement or any non-contractual obligation arising out of in connection with this Agreement) (a **"Dispute"**) shall also be resolved by the Parties through negotiations.

21.3 Where the Parties fail to reach a consensus in accordance with the provisions of Clause 21.2 above, then either Party may refer such Dispute to arbitration upon giving the other Party **fifteen (15) days written notice.**

21.4 The arbitration proceedings shall be conducted by a single arbitrator appointed in accordance with the provisions of the Arbitration and Conciliation Act, Cap A18, Laws of the Federation of Nigeria, 2004 or any amendments or re-enactments thereof utilising the rules contained in the said Arbitration and Conciliation Act. The arbitration venue shall be Lagos, Nigeria.

21.5 Each Party shall bear its own costs and expenses of fees (including attorneys' and other related fees) incurred in connection with this Paragraph. The Arbitrator's fee shall be equally borne by both Parties.

21.6 Notwithstanding the foregoing, nothing shall prevent either Party from seeking injunctive relief from a court or to bring an action in court to enforce any award or remedies based on a determination by any arbitration.

22 GOVERNING LAW

This Agreement (and any non-contractual obligations arising out of or in connection with it) shall be construed and governed in accordance with Nigerian law.

23 CONFIDENTIALITY

23.1 All Confidential Information given by a Party to this Agreement (the **"Disclosing Party"**) to the other Party (the **"Recipient"**) or otherwise obtained, developed or created by the Recipient, relating to the Disclosing Party or its Affiliate, including under or in connection with this Agreement will be treated by the Recipient, its employees, agents and subcontractors (including the Contractor's personnel, in the case of the Contractor) as confidential and will not be used other than for the performance of the Receiving Party's obligations under the Agreement to the benefit of the Disclosing Party, neither will it be disclosed to third parties without the prior written consent of the Disclosing Party.

23.2 The Recipient will ensure that only those of its employees, agents, and subcontractors to whom disclosure of the Confidential Information is required for the performance of the Recipient's obligations under this Agreement will have access to the Confidential Information and then only to the extent necessary to perform the obligations under this Agreement. Confidential Information may however be disclosed to the extent required by law or any regulation, and in these circumstances, the Recipient will give the Disclosing Party prior and prompt written notice of the disclosure, so that the Disclosing Party may have an opportunity to stop the disclosure through appropriate legal means.

23.3 The Recipient may disclose Confidential Information, and notify the other Party in writing, to the extent that such disclosure is required on a "need to know" basis to:

23.3.1 any professional adviser(s), auditors or insurers which it has engaged for itself;

23.3.2 any Affiliate, shareholder, potential purchaser, lender or sub-lender of the Recipient, or any director, officer or employee of the Recipient; provided that in each case, the Recipient will first advise the person of the Recipient's obligation to keep the Confidential Information secret / confidential, and ensure that the person is bound by obligations of confidence in respect of the Confidential Information no less onerous than those contained in this clause;

23.3.3 any subcontractors of the Recipient who has entered into a confidentiality agreement with the Disclosing Party in respect of the Confidential Information on substantially the same terms as those contained in this clause;

23.3.4 any Governmental Authority that is legally empowered to demand disclosure of Confidential Information, subject to the provisions of **Clause 23.2**; and

23.3.5 any person bearing a court order demanding disclosure.

23.4 The content, existence and scope of this Agreement all constitute Confidential Information.

23.5 The Parties agree that damages may not be an adequate remedy for any breach of this clause by either Party or any of their advisers, Affiliates or subcontractors and the Parties shall be entitled to seek any legal relief, including any injunction, conservatory or interim measure, in the event of any breach of the provisions of this clause.

23.6 The Parties hereby agree that the provisions of this clause shall subsist even after the termination or expiration of this Agreement.

24. PROPRIETARY RIGHTS

All information, visual interfaces, Data, and methods of operation provided by IHS, including any analysis carried out on the information gathered during the performance of the Services by the Contractor **("IHS Materials")** are owned by IHS. The IHS Materials may not be used, copied, distributed, transmitted, broadcast, displayed, sold, licensed, de-compiled, or otherwise exploited for any other purposes whatsoever without I's prior written permission.

25. INDEMNIFICATION

25.1 The Contractor shall indemnify and hold harmless and non-liable IHS and its officials, agents, officers, and employees from and against any and all direct economy losses or costs caused by all claims, demands, actions, losses, damages, assessments, charges, liabilities, costs and expenses (including but not limited to legal fees and disbursements, penalties and interest) (together, **"Liabilities"**) arising out of or in connection with:

25.1.1 any default or breach committed by the Contractor (or any of its personnel, agents, representatives, or subcontractors) or any non-compliance with any provision of this Agreement;

25.1.2 any fraudulent, negligent, or willful acts or omissions of the Contractor in connection howsoever with this Agreement;

25.1.3 the breach, negligent acts or omissions of, or representations, warranties and undertakings by the Contractor and/or any third party who provides the Services on behalf of or on the instructions of the Contractor, or pursuant to any agreement with that third party;

25.1.4 theft, loss, or damage to or destruction of tangible property or personal injury caused to IHS by the Contractor, its personnel or any of its agents, representatives or subcontractors in the course of the provision of the Services;

25.1.5 any claim or action brought against IHS by any persons, Governmental Authorities or third party as a result of any default, negligent act or omission of the Contractor or any of its personnel, agents, representatives and/or subcontractors; and

25.1.6 a breach or failure by the Contractor to provide the Services in accordance with the requirements of this Agreement.

25.2 IHS shall notify the Contractor of any Liability, suit, action, proceeding, claim or demand in respect of which indemnification may be sought pursuant to **Clause 25.1** above, and shall promptly provide to the Contractor a copy of any applicable summons, complaint or other notice of claim relevant thereto; provided that the failure to notify the Contractor shall not relieve it from any proven liability that it may have under this **Clause 25** except to the extent that it has been materially prejudiced (through the forfeiture of substantive rights or defences) by such failure, and provided further that the failure to notify the Contractor shall not relieve it from any proven liability that it may have to IHS otherwise than under this **Clause 25**.

25.3 Following any such claims mentioned above, IHS shall at its discretion, be entitled to either defend such claims or request the Contractor to assume such defence (in which case the Contractor shall be obliged to assume such defence within **ten (10) days** following any such notice by IHS). For the avoidance of doubt, any such defence (including all related Liabilities, including the cost of legal counsel) shall be at the Contractor's expense and covered by the indemnity referred to in **Clause 25.1** above the Contractor shall take all actions reasonably necessary to protect IHS from such claim. In the event that the Contractor fails or refuses to undertake such defence, IHS may, but shall not be obligated to assume its own defence, and thereafter recover the costs of such defence and any Liabilities or damages thereof from the Contractor.

25.4 Notwithstanding any other provision in this Agreement, neither Party shall be liable to the other Party for any loss of profit or revenues, loss of opportunity, loss of goodwill or reputation and/or any indirect or Consequential Losses whatsoever.

26. UTMOST GOOD FAITH

Each Party understands that by virtue of this Agreement, the position of each Party to the other is that of trust and accordingly pledges to demonstrate utmost good faith in the course of providing the Services.

27. NOTICES

27.1 Any notice required under this Agreement must be made in writing (which may include email) and in English language, and delivered by hand, email, registered post, or courier using an internationally recognized courier company, to the addresses stated below. Each Party shall notify the other Party of any changes to its details as set out in this clause from time to time:

Name of Party: I (Nigeria) Limited
Address: Plot 934 Idejo Street, Victoria Island, Lagos.
Attention: Ramesh Guptha
Email: ramesh.guptha@ihstowers.com
leg_corporatecommercial.ng@ihstowers.com

Name of Party : CrossBoundary Nigeria Limited
Address : 5th Floor, Landmark Towers, Water Corporation Drive, Victoria Island, Lagos, Nigeria
Attention : Rik Wuts / Matthew Tilleard
Email : Rik.Wuts@crossboundary.com
Matt.Tilleard@crossboundary.com

27.2 A notice shall be effective upon receipt and shall be deemed to have been received (i) at the time of delivery, if delivered by hand, registered post or courier or (ii) at the time of transmission, if delivered by email, to the extent no delivery failure notification is received by the sender within **twenty-four (24) hours** of such transmission.

28. GENERAL PROVISIONS

28.1 Entire Agreement and Amendment

28.1.1 This Agreement supersedes all previous communications, transactions, and undertakings, whether oral or written, and constitutes the sole and entire agreement between the Parties concerning the scope of works and may not be amended except by a written document executed by both Parties hereto.

28.1.2 A Party proposing an amendment to any term of this Agreement shall give a written notice of such intention to the other Party. The written notice shall specify in sufficient detail, the clause(s) sought to be amended, the proposed amendment as well as the need for such amendment, and both Parties shall take steps to negotiate in good faith for the purpose of effecting such amendment as agreed by both Parties. Any amendment to this Agreement will not be binding on the Parties unless set out in writing expressly to amend or supplement this Agreement and signed by both Parties.

28.2 Severability

If, at any time, any provision of this Agreement is or becomes illegal, invalid, or unenforceable in any respect under any jurisdiction, neither the legality, validity, or enforceability of the remaining provisions nor the legality, validity, or enforceability of such provision under any other jurisdiction will in any way be affected or impaired.

28.3 Non-Waiver

No failure to exercise, or any delay in exercising, on the part of any Party, any right or remedy under this Agreement will operate as a waiver, neither will any single or partial exercise of any right or remedy prevent any further or the exercise of any other right or remedy. The rights and remedies provided in this Agreement are not exclusive of any rights or remedies provided by law and same may only be waived in writing and specifically.

28.4 Counterparts

This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all such counterparts shall together constitute one and the same instrument.

(Signature page follows immediately)

IN WITNESS WHEREOF the Parties have caused this Agreement to be executed in the manner hereinafter appearing the day and year first above written.

THE COMMON SEAL OF THE WITHIN NAMED IHS (NIGERIA) LIMITED WAS AFFIXED IN THE PRESENCE OF:

.....	.....
DIRECTOR	**SECRETARY**
NAME:	**NAME:**

THE COMMON SEAL OF THE WITHIN NAMED CONTRACTOR, CROSSBOUNDARY NIGERIA LIMITED WAS AFFIXED IN THE PRESENCE OF:

Matthew Tilleard (Dec 16, 2022 12:19 GMT+3)	
.....	.....
DIRECTOR	**SECRETARY**
NAME: Matthew Tilleard	**NAME:** Richard Stanford
Dec 16, 2022	Dec 16, 2022

SCHEDULE 1
SCOPE OF WORKS / SERVICES

The Contractor is required to install and maintain the power equipment as designed. The goal is to test the technical viability of power solution to last for **ten (10) years**.

The objective of the proof of concept is to demonstrate the Contractor's technical and operational capacity to supply, deploy and maintain a turn-key renewable energy solution to IHS.

The Contractor shall ensure that prior to the performance of the Services, it shall identify any snag on Site and immediately inform IHS for resolution.

1. The Contractor shall install power solutions to the **five (5) Sites** as detailed below:

IHS Site ID	**IHS_ABJ_0087 B**	**IHS_KAN_0054 B**	**IHS_EDO_1201 B**	**IHS_LAG_0230 B**	**IHS_ABJ_0173 B**
Load (Kw)	2	4	4.5	5	7
Designed PV capacity (kWp)	17.3	21.6	30.2	25.9	25.9
Output power solar MPPT (kw)	13	16	22	19	19
Output power rectifiers (kw)	18	27	27	36	36
BUB capacity (AH)	1000	1750	2000	2250	2750
CAPEX per Site	USD 62,562	USD 84,593	USD 96,448	USD 99,965	USD 110,432

N.B Pricing is set in United States Dollars but payable in Naira at the prevailing NAFEX rate at the date of payment

2. IHS will provide generators on **five (5) Sites** in addition to diesel allocation in accordance with the table below:

IHS Site ID	**IHS_ABJ_0087 B**	**IHS_KAN_0054 B**	**IHS_EDO_1201 B**	**IHS_LAG_0230 B**	**IHS_ABJ_0173 B**
DG Rating (KVA)	22	33	33	50	50
Annual Fuel	393	4291	3124	8632	11372

Allocation (Liters)					
Jan	33	364	265	733	966
Feb	36	392	286	789	1040
Mar	32	349	254	702	925
Apr	29	312	227	628	827
May	31	343	250	690	909
Jun	38	417	304	839	1105
Jul	35	386	281	777	1023
Aug	35	383	279	771	1015
Sep	32	352	256	708	933
Oct	28	306	223	615	811
Nov	26	287	209	578	761
Dec	36	398	290	802	1056

3. The Contractor shall deploy the power solution within **fourteen (14) weeks** after receiving the work order from IHS as provided below:

S/N	ACTIVITY	TIMELINE
1.	Equipment procurement ExW	14 weeks
2.	International Transport – Airfreight	
3.	Custom Clearance	
4.	Civil works	
5.	Installation and COD	
	Total	

4. The Scope of Service to be performed by the Contractor shall include operation, supervision, routine checks, routine repairs, preventive maintenance, break down (corrective) maintenance, and repairs of Energy Infrastructure equipment on the Site, energy management to ensure uninterrupted DC power generated by the rectifier or batteries being supplied by AC power either from electricity distribution companies , from back up DG set, solar system, and any power generating system, safety and security of all equipment on the Sites.

5. The "Energy Output" represents all electric energy delivered or available to be delivered by the Energy Infrastructure over the length of the Agreement. The Energy infrastructure shall be limited to the equipment installed by the Contractor, as detailed in the equipment supply responsibility matrix below:

		Contractor	IHS
Solar PV	Solar PV Modules	X	
	Solar panels Mounting structures	X	
	Solar panels Anti-theft system	X	
Power system including	MPPT solar converter	X	
	Rectifiers	X	
	Power system controllers	X	
	Any electrical circuit and protection that compose the power system and are included in the power system cabinet as supplied by this specific equipment manufacturer	X	
Batteries	Lithium battery	X	
	BMS	X	
	Comms and DC cables	X	
Outdoor Cabinet	Outdoor Cabinet for Power System	X	

	Battery outdoor cabinet	X	
	Any element installed inside these cabinets	X	
Diesel Generator	Diesel Generator		X
	Fuel tank and fuel sensor		X
Electrical cabinets (incl. associated installation material)	IP66 PV Combiner Box	X	
	Fixing kit for combiner boxes	X	
	DC Distribution Unit	X	
Electrical cables (incl. earthing) – Power station cabling including	MC4 Connector kit PV stick	X	
	Photovoltaic cable 1x4 mm2 - Black - fron solar to combiner box	X	
	H07RN-F - Battery cable 1x95mm^2 flexible, black - battery cable to power system	X	
	H07RN-F 2 x 25mm^2 - fron combiner box to power system	X	
	Cable U1000 RO2V 3G 6mm^2 - Distribution 48 VDC low loads	X	
	Cable U1000 RO2V 3G 16mm^2 - Distribution 48 VDC high loads	X	
	Cable H07RN-F 5G 6mm^2 - genset to power system	X	
	Earthing cabling	X	
	H07 VK V/J 1x16mm^2 - for power system and solar panels	X	
	H07 VK V/J 1x25mm^2 - for genset	X	
	H07 VK V/J 1x50mm^2 - main earthing	X	
Installation equipment – for power system	Plastic clamps, earthing system, bolts, tape, flex conduits, etc	X	
Monitoring and metering	Router and Energy monitoring system components	X	
	Energy meters	X	
Others	Cable tray galvanised + associated accessories	X	

6. The Energy Infrastructure shall be limited to the element installed on the solar side of the interconnection breaker inside the DC Distribution Unit (DCDU) installed by the Contractor, up to the Delivery Point. IHS shall provide the specifications for the delivery point (i.e. DC breakers before interconnection cable to the Active Equipment).

7. The interconnection strategy as agreed with IHS is as follows:
   - The Contractor to design, supply and install all infrastructure leading up to the Delivery Point(s) and maintain the Passive Equipment even after the Delivery Point(s)
   - The Contractor will provide a DC distribution unit which will include breakers and meters for each of the active equipment as well as other ancillary equipment per IHS specification
   - IHS must communicate with the Contractor the required breakers to be included in the DCDU prior to start of construction. The Contractor will review the request and design the DCDU to integrate the required breakers.
   - The Contractor shall be responsible for power availability according to the SLA up to the delivery point and all other passive equipment on the Sites.

The Contractor shall submit to IHS the proposed cable size according to industry best practices and IHS Technical Team will approve the cable size based on its customer's power requirement.

8. The Contractor shall manage all the Energy Infrastructure elements listed below:
   - All equipment included in the Energy Infrastructure as detailed above.
   - Repairs of civil construction for Energy Infrastructure including foundations of solar mounting structures, diesel generators, battery cabinets and power system cabinets.
   - Site locking mechanism and corresponding locks for various Energy Infrastructure and equipment deployed.
   - Other new technical/energy efficient initiatives like fuel cells, solar system, DCDGs etc.

- Energy storage systems.

9. The passive infrastructure shall be defined as all elements other than the Energy Infrastructure and the active systems (telecommunications equipment) within the Site boundaries and shall be limited to all elements listed below:
    - Tower (tower torqueing, bolt, nuts, tower service, guyed wires, AWL, etc)
    - Site perimeter/retaining wall and fencing.
    - Shelter - floor, roof, doors, openings, locking mechanism, cable manager, electrical reticulation, and accessories, etc.
    - Building infrastructure - foundations, pathways, compound wall, back filling, slabs, razor wire, cable tray and supports, Site signage, granite spreading, anti-weed, gates, locking mechanism, locks, guard house, ramps, etc.
    - Guard house and locking mechanism.
    - Alarm system (with all sensors).
    - Firefighting systems, and fire extinguishers.
    - Earthing system - Site, equipment, RF and MW, grounding connections, etc., correction and improvement in case earth reading is not within the approved limit.

10. For the purpose of the POC, the Contractor shall manage all the passive infrastructure elements, with the exclusion of any replacement CAPEX or investment that is not part of the monthly maintenance routine, such as investment in a crane, or rent of scaffolding, painting of the tower, replacement of the fence, etc. If such services are required during the duration of this Agreement, the Contractor shall provide these services at an additional cost to IHS.

11. IHS shall manage or procure the following:
    a. Each site to be snagged and repaired to baseline condition before handover to the Contractor.
    b. Provision of new genset for each Site free of charge per mutually agreed specifications.
    c. Fuel supply and delivery to the Sites.

SCHEDULE 2
SUCCESS CRITERIA

The Contractor shall ensure power availability of each Site shall be as per below matrix:

Site Priority	P4	P4	P4	P1	P3
IHS Site ID	IHS_ABJ_0087B	IHS_KAN_0054B	IHS_EDO_1201B	IHS_LAG_0230B	IHS_ABJ_0173B
Set SLA %	99.95				

- In calculating the SLA% achievement for the Performance Monitoring Period, Parties hereby agree that Force Majeure Events shall be excluded from such calculation.
- If any Site fails to achieve the minimum required SLA at the end of the Performance Monitoring Period, the POC shall be considered unsuccessful, irrespective that all other Sites achieve their respective SLAs. For avoidance of doubt, all Sites, must meet the minimum required SLA as stated above, for the POC to be considered successful.
- The Contractor shall meet the annual diesel consumption as stated in table 2 of Schedule 1 above.
- Thereafter, the Contractor shall ensure proper maintenance of the Site.
- The Contractor shall maintain the Site in accordance with the provisions of Clause 4 in Schedule 1 above.
- This success Criteria shall be monitored on a monthly basis.
- Payment shall be made in accordance with Schedule 3 below.

SCHEDULE 3
PRICING AND PAYMENT TERMS

1. Pricing:

The monthly fees to be paid to the Contractor for power generation and site maintenance shall be as stated below:

Site #	1	2	3	4	5
IHS Site ID	IHS_ABJ_0087B	IHS_KAN 054B	IHS_EDO_1201B	IHS_LAG_0230B	IHS_ABJ_0173B
Monthly fees (USD)	820	1,036	1,194	1,202	1,293

2. Payment terms

2.1. Pricing is set in United States Dollars but payable in Naira at the prevailing NAFEX rate each month at the date of payment

2.2. The above payment is due each month, within thirty (30) days of receipt of Invoice. All payments shall be exclusive of VAT but subject to deduction of WHT at the applicable statutory rate.

2.3. In addition to the above payment, IHS shall pay the Contractor the sum of N44,000.00 (Forty-Four Thousand Naira) per month as security fees for each Site.

2.4. Where the POC is unsuccessful, IHS shall not purchase any of the equipment deployed to the sites. The Contractor shall decommission and evacuate such equipment at its sole cost.

SCHEDULE 4

HEALTH, SAFETY, SOCIAL (LOCAL COMMUNITY), SECURITY AND ENVIRONMENT REQUIREMENTS

SCOPE

This Schedule describes the health, safety and environment (HSE) requirements to be applied by the Contractor during the performance of the Services.

The Contractor undertakes on its behalf and on behalf of its subcontractors, to prevent the risks of any bodily injury and damage to property during the performance of the Services.

The Contractor shall comply and ensure that its personnel are fully aware of and comply with the rules in force regarding working conditions, health, hygiene, safety and environment as well as with the Applicable Laws in respect of the same.

RESPONSIBILITIES OF THE CONTRACTOR

The Contractor shall:

- perform the Services with full compliance with IHS's HSE policies, protection of all IHS and the Contractor's personnel, respect for the environment and safeguard for IHS's assets.
- have a clearly defined HSE Policy stating its commitment to HSE.
- adhere to HSE requirements relating to the Services resulting from the Applicable Laws (including those relating to permits, certifications and authorisations), the HSE written international standards used as reference for the performance of the Services
- perform the Services in accordance with well-accepted safe working practice and established available industry practices for environmental performance.
- ensure its personnel are fully aware of applicable environmental laws, regulations and standards and apply them. The Contractor shall ensure that its personnel are qualified to use all fittings, equipment and tools required for the performance of the Services and hold the appropriate certificates of proficiency;
- ensure that no part of the Services is performed by Contractor's personnel, under the influence of alcohol, drugs or any other illegal substance;
- immediately and at its own expenses, stop any situation or activity under its control, which is dangerous or harmful to any person's health, is unhygienic or poses a safety threat to the environment.
- ensure that working hours and rotation period as well as ergonomic conditions comply with the Applicable Laws and do not increase occupational risks.
- ensure that the Contractor's personnel's awareness to HSE is continuously maintained and enhanced through an appropriate training plan. Such training plan shall be in place from the Effective Date of this Agreement.
- have a medical fitness control policy and shall be responsible for its implementation.
- attend all HSE meetings organized by IHS.

- provide personal protective equipment to all personnel in accordance with recognized international standards. The Contractor shall also provide the controls to ensure that all safety measures are followed and not violated, and where there is a violation, then appropriate sanctions shall be meted out. This includes safety measures against electrification and any injuries (and this shall be applied to the Contractor and any other sub-contractor personnel involved in the Services).
- ensure adequate precautions are taken to prevent falls from heights where injury might result.
- develop emergency response procedures for medical evacuation, fire and explosion, security breaches and sabotage.
- furnish to IHS, information on any hazardous materials it needs to use and ensure that any substances, chemicals, products, and materials used in the performance of the Services considered as hazardous by local or international regulations or standards are:
  - clearly identified and labelled in accordance with international regulations or standards,
  - quantified for the duration of the Services,
  - handled and stored by well trained personnel,
  - disposed of adequately when expired or when they become unused scrap.
  - any disposal approach or process for consumables, lubricants, gases, equipment, shall be sent to IHS for approval before implementation

SECURITY

The Contractor shall implement adequate and effective security measures and shall ensure that all security measures it deploys are compliant with all Applicable Laws, including the respect for human rights.

The Contractor shall implement or have in place a robust security risk assessment system and shall monitor the security situation on a continuous basis. All Security incidents that occur within the subsistence of the Agreement will be recorded by the Contractor and sent to IHS immediately on occurrence. The format of report and template to be used will capture incident, time of occurrence, and clearly show if potentials exist for escalation.

The Contractor shall have a designated security focal point / person that will interface with IHS Security representative. The Contractor's Security focal point will be qualified, capable and empowered to respond to IHS's security requests.

The Contractor will have in place a system to account for all personnel on its facilities on a daily basis. In this regard, the Contractor shall:

- Keep a record of all its personnel for the Services
- Designate a person who will be responsible for keeping and updating the above information on a daily basis.

The Contractor will have a security reporting system in place. The minimum reports expected are as follows:

- Daily Security reports
- Weekly Security reports

- Monthly Security reports

Such security reports must be submitted to IHS by the Contractor.

If the Contractor implements at any location, protection measures against potential threats to the personnel working in such location and the physical assets located therein, such measures shall be the most appropriate in the circumstances and shall be consistent with the Applicable Laws.

All consequences arising from the Contractor's non-compliance with any of the foregoing obligations, including any costs associated with the implementation of the measures taken by IHS in the event of deficiency or negligence on the part of the Contractor and the denial of access or of continued presence, shall be borne solely by the Contractor.

RESPECT FOR THE ENVIRONMENT

The Contractor shall pay due regard to the environment and shall act responsibly to protect the environment from adverse effects resulting from activities performed under this Agreement and to minimize any adverse impacts which may arise from such activities.

The Contractor's personnel shall be informed about applicable environmental laws, regulations and standards and apply them.

The Contractor shall avoid using equipment that could cause any damage to the environment.

SUBCONTRACTORS

The Contractor shall communicate and enforce the same safety requirements on its personnel and subcontractors.

The Contractor shall assess the HSE performance and organisation of subcontractors prior to the Effective Date of this Agreement and throughout the subsistence of this Agreement.

RISK ASSESSMENT AND MITIGATION

The Contractor shall develop and maintain procedures to identify health and environmental hazards and their effects, which may affect the progress of the work or arise from the Services. Risk identification and assessment techniques shall be used in conjunction with the judgement of experienced personnel to implement risk reduction measures to prevent incidents and mitigate the consequences of such incidents.

WASTE MANAGEMENT

The Contractor shall ensure that all wastes particularly hazardous or contaminated wastes are collected, transported, and disposed of in an environmentally responsible manner, in accordance with statutory duty of care requirements, thereby ensuring full audit trail of our waste streams.

INCIDENT REPORT FORM

In any case of accident, theft or any other incident, the Contractor shall fill the incident report form below and submit same to IHS within **twenty-four (24) hours** of occurrence.

CONTRACTOR – INCIDENT REPORT FORM	
Date:	
Incident reported by: Name and company	
Occupational Health & Safety Incident Reported: Fatality, first aid case, near miss, injury, illness, others (specify)	
Other Incident Reported: Theft, fire, spill, noise, emission, explosion, others (specify)	
Brief Description of Incident: Kindly provide all the information that apply	
Observations:	
Effects of Incident: (number of people affected, and/ or other impacts to land, air, water)	
Corrective Action Taken:	
Time or days lost:	
Witness to incident/accident:	
Root cause of incident/accident:	
Further Action:	

Fatality	Fatality is a classification of death resulting from a Work Injury or Occupational Illness, regardless of the time intervening between the injury/illness and death.
First Aid Case	First Aid Case is any one-time treatment and subsequent observation of minor scratches, cuts, burns, splinters etc., which do not ordinarily require medical care by a physician. Such treatments and observations are considered First Aid even if provided by a physician or registered professional.
Medical Treatment Case	Medical Treatment Case is any reportable injury that involves neither Lost Workdays nor Restricted Workdays, but requires treatment by, or under the specific order of a physician or could be considered as being in the province of a physician. Medical Treatment Case does not include First Aid even if physician or registered professional personnel provides this.
Near Miss	Near Miss is an incident which resulted in no injury, illness, damage, product loss or harm to an individual, but had the potential to do so. It is a close call or a narrow escape from danger or disaster.
Occupational Illness	Occupational Illness is any work-related abnormal condition or disorder, other than resulting from reportable injury, caused by or mainly caused by exposure to environmental factors associated with the employment. It includes acute and chronic illness or disease, which may be caused by inhalation, absorption, ingestion, or direct contact.
	Whether a case includes a reportable injury or an occupational illness is determined by the nature of the original event or exposure, which caused the case, not by resulting condition of the affected employee. Injuries are caused by single events, although some exceptions exist, such as malaria and food poisoning, which are classified as occupational illnesses. Cases resulting from anything other than a single event are considered occupational illnesses.
Non-Accidental Death	Non-Accidental Death is any case of death either (1) where there is no identifiable incident or trauma involved, or (2) where there is an apparent suicide.
Permanent Partial Disability	Permanent Partial Disability is any work injury which results in the complete loss, or permanent loss of use, of any member of permanent loss of use, of any member or part of the body or any permanent impairment of functions of parts of the body, regardless of any pre-existing disability of the injured member or impaired body function.
Permanent Total Disability	Permanent Total Disability is any injury that incapacitates an employee permanently and results in the termination of employment.
Road Traffic Accident	Road Traffic Accident is any incident which has involves a vehicle and which has resulted in actual injury and/or damage (loss) of assets, the environment or the company's reputation.
Unsafe Act	Unsafe Act is any act that deviates from a generally recognized safe way or specified method of doing a job and which increases the probabilities for an accident.
Unsafe Condition	Unsafe Condition is an unsatisfactory physical condition existing in a workplace environment immediately before an accident that was significant in initiating the event